

Tentative Rulings and Resolution Review Hearings
April 21, 2025
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

DELANEY VS. MEJAS ALL IN CONSTRUCTION

Case Number: 25CV-0207297

Tentative Ruling on Petition to Release Mechanic’s Lien: Petitioner “Jessica Delaney of Shasta Redevelopment, LLC” seeks an order releasing a mechanic’s lien on real property commonly known as 2620 Irwin Road, Redding, CA 96002. The Petition is defective in multiple respects.

As a threshold issue, Petitioner brings this action as “Jessica Delaney of Shasta Redevelopment, LLC.” This is improper. “A corporation has the capacity to bring a lawsuit because it has all the powers of a natural person in carrying out its business. (§ 17; Corp.Code, §§ 105, 207.) However, under a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.” *CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal. App. 4th 1141, 1145. The owner of the property, Shasta Redevelopment, LLC, must be represented by a licensed attorney to proceed before the court.

Additionally, the matter is not properly noticed. Civil Code § 8480 et seq. establishes the procedural requirements for an owner of property to petition a court for an order releasing a mechanic’s lien when the claimant has not timely filed an action to enforce the lien. Petitioner is required to serve a copy of the petition and notice of hearing on the claimant at least 15 days before the hearing, and “[s]ervice shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108.” Civil Code § 8486(b). Here, proof of service is on two individuals not named in the Petition. There is no proof of service on Mejas All In Construction. No Notice of Hearing has been filed or served. The proof of service indicates service by US mail only.

Finally, Civil Code § 8484 requires that the petition be verified and contain the following information:

- a) The date of recordation of the claim of lien. A certified copy of the claim of lien attached to the petition.
- b) The county in which the claim of lien is recorded.
- c) The book and page or series number of the place in the official records where the claim of lien is recorded.
- d) The legal description of the property subject to the claim of lien.
- e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.
- f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.
- g) Whether an action to enforce the lien is pending.
- h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

Petitioner's Verified Petition does not satisfy any of the requirements set forth in Civil Code § 8484. The Petition is **DENIED** without prejudice. No proposed order has been lodged as required by Local Rule 5.17(D). Petitioner shall prepare the order.

GUERRA VS. KNAUF INSULATION, INC.

Case Number: 24CV-0206404

Tentative Ruling on Demurrer or in the Alternative Motion to Strike: This is a PAGA action arising out of Plaintiff's employment with Knauf Insulation, Inc. Defendant demurs, or in the Alternative moves to strike portions of Plaintiff's Complaint. The operative complaint is the Second Amended Complaint filed February 10, 2025. Plaintiff opposes the motion.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Scott Witlin indicates compliance with the requirements of the CCP § 430.41.

Request for Judicial Notice: Pursuant to Evidence Code sections 451 and 452, the Defendant requests the Court take judicial notice of: 1) the Collective Bargaining Agreement between Knauf and Teamsters Local 137, 2) Second Amended Complaint in related case, currently pending in Eastern District, 3) Original Complaint filed in related case, currently pending in Eastern District, 4) California Industrial Welfare Commission's Wage Order No. 1-2201, 5) California Minimum Wage Notice in Effect January 1, 2021 – January 1, 2024. The request is denied as to the Collective Bargaining Agreement and granted as to the remainder pursuant to Evid. Code 452(c) and (d).

Merits: A demurrer should be sustained if "there is another action pending between the same parties on the same cause of action." CCP § 430.10(c). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a